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Order QR

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED: 23-10-2026

CORAM

THE HON'BLE MR.JUSTICE N.RAMESH

CRL OP No. 30881 of 2026

CNR: {HCMA012563952026}

Vinoth
S/o Veerasamy,
Keezhatheru, Korukkai Village,
Thiruthuraipooondi Taluk,
Thiruvarur District.

Case QR

..Petitioner(s)

Vs

State Rep by The Inspector of Police
All Women Police Station Thiruthuraipoondi,
Tiruvarur District.
Crime No. 31 of 2026.

..Respondent(s)

PRAYER : Criminal Original Petition filed under Section 528 of BNSS praying to enlarge the petitioner on bail, pending investigation of the case in Crime No.31 of 2026 on the file of the Respondent and thus render Justice.

For Petitioner(s): Mr. M.Vijaya Ragavan

For Respondent(s): Mr. M.M.I.Khaleel
Government Advocate (Crl. Side)

ORDER

The petitioner, who was arrested and remanded to judicial custody on **14.09.2026** for the alleged offences punishable under **Sections 296(b), 351(2) and 69 of BNS, 2023** in Crime No. 31 of 2026 on the file of the respondent police, seeks regular bail.

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2. The case of the prosecution is that initially there was a love affair between the petitioner and the defacto complainant and thereafter on the pretext of marriage, petitioner had involved in physical relationship with the defacto complainant and thereafter refused to marry her. Hence, the complaint.

3. The learned counsel for the petitioner submits that it is true that there was love affair between the petitioner and the defacto complainant initially, however subsequently, they broke their relationship and thereafter victim girl fell in love with some other boy and that is the reason petitioner part away with the defacto complaiannt. He further undertakes that the petitioner will strictly abide by any stringent conditions imposed by this Court and will co-operate with the investigation.

4. The learned Government Advocate (Criminal Side) appearing for the respondent state strongly opposes the grant of bail.

5. Heard the learned counsel appearing for the parties and perused the materials available on records.

6. Considering the facts and circumstances of the case and the period of incarceration undergone by the petitioner from **14.09.2026**, this Court is inclined to grant bail to the petitioner, subject to following conditions.

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7. Accordingly, the petitioner is ordered to be released on bail on his executing a bond for a sum of **Rs.25,000/- (Rupees Twenty Five Thousand only) with two sureties,** each for a like sum to the satisfaction of the **learned Judicial Magistrate, Thiruthuraipoondi, Tiruvarur District,** and on further conditions that:

[a] the sureties shall affix his photographs and Left Thumb Impression in the Application for Surety ship [Judicial Form No.46 annexed to 'The Criminal Rules of Practice, 2019']. The learned Magistrate shall obtain a copy of any one of the identity proofs to ensure his identity;

(b) the petitioner shall report before the respondent police daily at 10.30.a.m., until further orders;

[c] the petitioner shall not abscond either during investigation or trial;

[d] the petitioner shall not tamper with the evidence or witness either during investigation or trial;

[e] On breach of any of the aforementioned conditions, the learned Magistrate/Trial Court is entitled to pass appropriate orders against the petitioner in accordance with law as if the aforementioned conditions have been imposed and the petitioner released on bail by the learned Magistrate/Trial Court himself as laid down by the Hon'ble Supreme Court in **P.K.Shaji vs. State of Kerala [(2005)13 SCC 283];**

[f] If the accused thereafter absconds, a fresh FIR can be registered under Section 269 of B.N.S.

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Note:

1. Registry is directed to forthwith upload this order in the Official Website of this Court.

2. All concerned to act on this order being uploaded in Official Website of this Court without insisting on certified hard copies. To be noted, this order when uploaded in the official website of this Court will be watermarked and will also have a QR code.

To

1. The Judicial Magistrate
Thiruthuraipoondi, Tiruvarur District

2. The Superintendent,
District Jail, Nagapattinam.

3. Inspector of Police
All Women Police Station
Thiruthuraipoondi,
Tiruvarur District.

4. The Public Prosecutor,
High Court of Madras.

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N.RAMESH, J.

SMA

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